

Reserved On: 11.07.2024 vs Balbir Singh And Others on 18 July, 2024

Bench: Tarlok Singh Chauhan, Sushil Kukreja

1 (2024:HHC:5466-DB) IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA Cr. Appeal No. 4147 of 2013 Reserved on: 11.07.2024 .

D e c i d e d o n : 1 8 . 0 7 . 2 0 2 4
_____ State of
Himachal PradeshAppellant Versus Balbir Singh and othersRespondents
_____ Coram Hon'ble
Mr. Justice Tarlok Singh Chauhan, Judge Hon'ble Mr. Justice Sushil Kukreja, Judge Whether
approved for reporting?

_____ For the appellant: Mr.
I.N. Mehta, Senior Additional Advocate General with Mr. Navlesh Verma, Ms.Sharmila Patial,
Additional Advocates General & Mr. Raj Negi, Deputy Advocate General.

For the respondents: Mr. Vikrant Thakur, Advocate.

Sushil Kukreja, Judge The instant appeal has been preferred by the appellant/State under Section 378 of the Code of Criminal Procedure (Cr.PC) against judgment dated 20.03.2013, passed by learned Additional Sessions Judge, Fast Track Court, Hamirpur, H.P., in Sessions Trial No.13 of 2012, whereby the accused persons (respondents herein) were acquitted for the offences punishable under Sections 498A, 342, 306 read with Section 34 of the Indian Penal Code (for short "IPC").

Whether reporters of Local Papers may be allowed to see the judgment?

2 (2024:HHC:5466-DB)

2. The facts giving rise to the instant appeal, as per the prosecution story, can be summarized as under:

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2(a). On 26.04.2007 Shri Gian Chand solemnized marriage of his two daughter, i.e., Smita Kumari (complainant) and Reena Devi (deceased) with the accused Shyam Singh and Balbir Singh, respectively, who are the sons of accused Sunder Singh and Savitri Devi, as per the Hindu rites and customs. After the marriage, both the sisters, i.e., the complainant and the deceased, started living in a joint family with the accused persons. The deceased gave birth to two children, i.e., a boy and a girl, and she was subjected to matrimonial cruelty by the accused persons w.e.f. April, 2007 to

March, 2012. The deceased succumbed to trauma, pain and suffering and ultimately committed suicide on 16.03.2012, around 01:00 p.m., by consuming Organo Phosphorous insecticide (Dichlorvos).

2(b). As per the story of the prosecution, the accused persons subjected the deceased, through their acts, to matrimonial cruelty, as they harassed the deceased and also the complainant for bringing insufficient dowry. The deceased was insulted, abused, beaten, harassed and maltreated by the accused persons. During the course of the investigation, statement of the complainant was recorded under Section 154 Cr.P.C., wherein she alleged the involvement of the accused persons in subjecting her and her sister (deceased) to maltreatment. The police registered a case under the apt Sections of

3 (2024:HHC:5466-DB) IPC. During the course of investigation, it was unearthed that after the marriage the accused persons started demanding gold ornaments, .

household articles etc. and they also started maltreating the deceased and the complainant. It was alleged that on 19.05.2009 and 20.05.2009 accused Balbir Singh gave beatings to his wife, i.e., the deceased and the matter was reported to the police. During the year 2011 the complainant and the deceased were compelled to leave their matrimonial home owing to relentless harassment and maltreatment, as such both of them came to their parents' house, alongwith their children, and stayed there for about 6-7 months. Lastly, with the intervention of the then Pradhan and Ward Member, the matter was amicably settled in a joint meeting in the house of Gian Chand (father of the complainant and the deceased), through a written compromise. Both, the deceased and the complainant returned to their in-laws' house, but the accused persons did not stop from maltreating and harassing them.

2(c). The complainant and the deceased filed petitions under Section 125 of Cr.P.C. and under Section 12 of the Protection of Women from the Domestic Violence Act, 2005. On 11.03.2012, the accused persons gave beatings to the complainant and the deceased, as such, again the matter was reported to the Gram Panchayat and a report was lodged with the local police. On 15.03.2012 the deceased moved an application before learned Judicial Magistrate 1 st Class, Barsar, seeking intervention of the Court, in the alleged acts of maltreatment, 4 (2024:HHC:5466-DB) harassment, dowry demands and domestic violence by the accused persons.

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2(d). It was further alleged that on 16.03.2012, around 10:00 am, the accused persons confined the deceased in a room and gave her beatings and was threatened to do away with her life. Subsequently, the deceased went missing and found dead by the complainant in Jaral Nalla, thus the deceased committed suicide by consuming Organo Phosphorous. As per the prosecution, the accused persons abetted the deceased to commit suicide. After completion of the investigation, the police presented the charge-sheet in the learned Trial Court.

3. The prosecution, in order to prove its case, examined nineteen witnesses. Statements of the accused persons under Section 313, Cr.PC were recorded, wherein they pleaded not guilty and claimed trial. The accused persons examined four witness in their defence.

4. The learned Trial Court, vide impugned judgment dated 20.03.2013, acquitted the accused persons for the offences punishable under Sections 498A, 342, 306 read with Section 34, IPC, hence, the instant appeal preferred by the appellant-State.

5. The learned Senior Additional Advocate General contended that the learned Trial Court was wrong on facts as well as on law and the impugned judgment is based on hypothetical reasoning, surmises and conjectures, hence, the same is liable to be set-aside. He further contended that the learned Trial Court has appreciated the evidence in 5 (2024:HHC:5466-DB) a slipshod and perfunctory manner and has gravely erred in not relying upon the documentary evidence. He also contended that the evidence .

was not appreciated in its right and true perspective as such the impugned judgment of acquittal is liable to be set aside.

6. Conversely, the learned counsel for the respondents/ accused persons contended that the impugned judgment has been passed by the learned Trial Court after proper appreciation of both facts and law. He further contended that the learned Trial Court has correctly appreciated the evidence in its true perspective and the impugned judgment does not require any interference by this Court. Therefore, he submitted that the instant appeal, which sans merits, be dismissed.

7. We have heard learned Senior Additional Advocate General for the appellant-State as well as learned counsel for the respondents and also carefully examined the entire records.

8. It is well settled by the Hon'ble Apex Court in a catena of decisions that an Appellate Court has full power to review, re-appreciate and reconsider the evidence upon which the order of acquittal is founded. However, Appellate Court must bear in mind that in case of acquittal there is double presumption in favour of the accused. Firstly, the presumption of innocence is available to him under the fundamental principle of criminal jurisprudence that every person shall be presumed to be innocent unless he is proved guilty by a competent Court of law.

Secondly, the accused having secured his acquittal, the presumption of 6 (2024:HHC:5466-DB) his innocence is further reinforced, reaffirmed and strengthened by the trial Court. Further, if two reasonable views are possible on the basis of .

the evidence on record, the Appellate Court should not disturb the finding of acquittal recorded by the trial Court.

9. The scope of power of Appellate Court in case of appeal against acquittal has been dealt with by the Hon'ble Apex Court in Muralidhar alias Gidda & another Vs. State of Karnataka reported in (2014) 5 SCC 730, which reads as under :-

"10. Lord Russell in Sheo Swarup[1], highlighted the approach of the High Court as an appellate court hearing the appeal against acquittal. Lord Russell said, "... the High Court should and will always give proper weight and consideration to such matters as (1) the views of the trial Judge as to the credibility of the witnesses; (2) the presumption of innocence in favour of the accused, a presumption certainly not weakened by the fact that he has been acquitted at his trial; (3) the right of the accused to the benefit of any doubt; and (4) the slowness of an appellate court in disturbing a finding of fact arrived at by a Judge who had the advantage of seeing the witnesses." The opinion of the Lord Russell has been followed over the years.

11. As early as in 1952, this Court in Surajpal Singh[2] while dealing with the powers of the High Court in an appeal against acquittal under Section 417 of the Criminal Procedure Code observed:

"7.....the High Court has full power to review the evidence upon which the order of acquittal was founded, but it is equally well settled that the presumption of innocence of the accused is further reinforced by his acquittal by the trial court, and the findings of the trial court which had the advantage of seeing the witnesses and hearing their evidence can be reversed only for very substantial and compelling reasons."

12. The approach of the appellate court in the appeal against acquittal has been dealt with by this Court in Tulsiram Kanu [3], Madan Mohan Singh [4], Atley [5] , Aher Raja Khima [6], Balbir Singh [7], M.G. Agarwal [8], Noor 7 (2024:HHC:5466-DB) Khan [9], Khedu Mohton [10], Shivaji Sahabrao Bobade [11], Lekha Yadav [12], Khem Karan [13], Bishan Singh [14], Umedbhai Jadavbhai [15], K. Gopal Reddy [16], Tota Singh [17], Ram Kumar [18], Madan Lal [19], Sambasivan [20], Bhagwan Singh [21], Harijana Thirupala [22], C. Antony [23], .

K. Gopalakrishna [24], Sanjay Thakran [25] and Chandrappa [26]. It is not necessary to deal with these cases individually. Suffice it to say that this Court has consistently held that in dealing with appeals against acquittal, the appellate court must bear in mind the following:

(i) There is presumption of innocence in favour of an accused person and such presumption is strengthened by the order of acquittal passed in his favour by the trial court,

(ii) The accused person is entitled to the benefit of reasonable doubt when it deals with the merit of the appeal against acquittal,

(iii) Though, the power of the appellate court in considering the appeals against acquittal are as extensive as its powers in appeals against convictions but the appellate court is generally loath in disturbing the finding of fact recorded by the trial court. It is so because the trial court had an advantage of seeing the demeanor of the witnesses. If the trial court takes a reasonable view of the facts of the case, interference by the appellate court with the judgment of acquittal is not justified. Unless, the conclusions reached by the trial court are palpably wrong or based on

erroneous view of the law or if such conclusions are allowed to stand, they are likely to result in grave injustice, the reluctance on the part of the appellate court in interfering with such conclusions is fully justified, and

(iv) Merely because the appellate court on re-

appreciation and re-evaluation of the evidence is inclined to take a different view, interference with the judgment of acquittal is not justified if the view taken by the trial court is a possible view. The evenly balanced views of the evidence must not result in the interference by the appellate court in the judgment of the trial court."

10. The Hon'ble Supreme Court in *Rajesh Prasad vs. State of Bihar & another*, (2022) 3 SCC 471, observed as under:-

"31. The circumstances under which an appeal would be entertained by this Court from an order of acquittal passed by a High Court may be summarized as follows:

8 (2024:HHC:5466-DB) 31.1. Ordinarily, this Court is cautious in interfering with an order of acquittal, especially when the order of acquittal has been confirmed up to the High Court. It is only in rarest of rare cases, where the High Court, on an absolutely wrong process of reasoning and a legally .

erroneous and perverse approach to the facts of the case, ignoring some of the most vital facts, has acquitted the accused, that the same may be reversed by this Court, exercising jurisdiction under Article 136 of the Constitution.

[*State of U.P. v. Sahai* (1982) 1 SCC 352] Such fetters on the right to entertain an appeal are prompted by the reluctance to expose a person, who has been acquitted by a competent court of a criminal charge, to the anxiety and tension of a further examination of the case, even though it is held by a superior court. [*Arunchalam v. P.S.R. Sadhanantham* (1979) 2 SCC 297] An appeal cannot be entertained against an order of acquittal which has, after recording valid and weighty reasons, has arrived at an unassailable, logical conclusion which justifies acquittal. [*State of Haryana vs. Lakhbir*] 31.2. However, this Court has on certain occasions, set aside the order of acquittal passed by a High Court. The circumstances under which this Court may entertain an appeal against an order of acquittal and pass an order of conviction, may be summarized as follows:

31.2.1. Where the approach or reasoning of the High Court is perverse;

(a) Where incontrovertible evidence has been rejected by the High Court based on suspicion and surmises, which are rather unrealistic. [*State of Rajasthan v. Sukhpal Singh* (1983) 1 SCC 393] For example, where direct, unanimous accounts of the eyewitnesses, were discounted without cogent reasoning. [*State of U.P. vs. Shanker* 1980 Supp SCC 489]

(b) Where the intrinsic merits of the testimony of relatives, living in the same house as the victim, were discounted on the ground that they were "interested" witnesses. [State of U.P. v. Hakim Singh (1980)]

(c) Where testimony of witnesses had been disbelieved by the High Court, on an unrealistic conjecture of personal motive on the part of witnesses to implicate the accused, when in fact, the witnesses had no axe to grind in the said matter. [State of Rajasthan v. Sukhpal Singh (1983) 1 SCC 393]

(d) Where dying declaration of the deceased victim was rejected by the High Court on an irrelevant ground that they did not explain the injury found on one of the persons present at the site of occurrence of 9 (2024:HHC:5466-DB) the crime. [Arunachalam vs. P.S.R. Sadhanantham (1979) 2 SCC 297]

(e) Where the High Court applied an unrealistic standard of "implicit proof" rather than that of "proof .

beyond reasonable doubt" and therefore evaluated the evidence in a flawed manner. [State of U.P. v. Ranjha Ram (1986) 4 SCC 99]

(f) Where the High Court rejected circumstantial evidence, based on an exaggerated and capricious theory, which were beyond the plea of the accused; [State of Maharashtra v. Champalal Punjaji Shah (1981) 3 SCC 610]

(g) Where the High Court acquitted the accused on the ground that he had no adequate motive to commit the offence, although, in the said case, there was strong direct evidence establishing the guilt of the accused, thereby making it necessary on the part of the prosecution to establish "motive". [State of A.P. v.

Bogam Chandraiah (1990) 1 SCC 445] 31.2.2. Where acquittal would result in gross miscarriage of justice;

(a) Where the findings of the High Court, disconnecting the accused persons with the crime, were based on a perfunctory consideration of evidence, [State of U.P. v. Pheru Singh 1989 Supp (1) SCC] or based on extenuating circumstances which were purely based in imagination and fantasy [State of U.P. v. Pussu (1983) 3 SCC 502]

(b) Where the accused had been acquitted on ground of delay in conducting trial, which delay was attributable not to the tardiness or indifference of the prosecuting agencies, but to the conduct of the accused himself; or where accused had been acquitted on ground of delay in conducting trial relating to an offence which is not of a trivial nature. [State of Maharashtra v. Champalal Punjaji Shah (1981) 3 SCC 610]."

11. In H.D. Sundara & others vs. State of Karnataka, (2023) 9 SCC 581, the Hon'ble Supreme Court has observed that the appellate court cannot overturn acquittal only on the ground that after re-

appreciating evidence, it is of the view that the guilt of the accused was 10 (2024:HHC:5466-DB) established beyond a reasonable doubt. The relevant portion of the above judgment is as under:-

"8. In this appeal, we are called upon to consider the legality and validity of the impugned judgment rendered by the High Court while deciding an appeal against acquittal under Section 378 of the Code of Criminal Procedure, 1973 (for short "CrPC"). The principles which govern the exercise of appellate jurisdiction while dealing with an appeal against acquittal under Section 378 CrPC can be summarized as follows:

8.1.The acquittal of the accused further strengthens the presumption of innocence;

8.2.The appellate court, while hearing an appeal against acquittal, is entitled to reappreciate the oral and documentary evidence;

8.3.The appellate court, while deciding an appeal against acquittal, after reappreciating the evidence, is required to consider whether the view taken by the trial court is possible view which could have been taken on the basis of the evidence on record;

8.4.If the view taken is a possible view, the appellate court cannot overturn the order of acquittal on the ground that another view was also possible; and 8.5.The appellate court can interfere with the order of acquittal only if it comes to a finding that the only conclusion which can be recorded on the basis of the evidence on record was that the guilt of the accused was proved beyond a reasonable doubt and no other conclusion was possible.

9.Normally, when an appellate court exercises appellate jurisdiction, the duty of the appellate court is to find out whether the verdict which is under challenge is correct or incorrect in law and on facts. The appellate court normally ascertains whether the decision under challenge is legal or illegal. But while dealing with an appeal against acquittal, the appellate court cannot examine the impugned judgment only to find out whether the view taken was correct or incorrect. After re-appreciating the oral and documentary evidence, the appellate court must first decide whether the trial court's view was a possible view. The appellate court cannot overturn acquittal only on the ground that after re- appreciating evidence, it is of the view that the guilt of the accused was established beyond a reasonable doubt. Only recording such a conclusion an order of acquittal cannot be reversed unless the appellate court also concludes that it was the only possible conclusion. Thus, the appellate court must see

whether the view taken by the trial court while acquitting an accused can be reasonably taken on the basis

11 (2024:HHC:5466-DB) of the evidence on record. If the view taken by the trial court is a possible view, the appellate court cannot interfere with the order of acquittal on the ground that another view could have been taken."

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12. Thus, the law on the issue can be summarized to the effect that in exceptional cases where there are compelling circumstances, and the judgment under appeal is found to be perverse, the appellate court can interfere with the order of acquittal. Further, if two views were possible on the basis of the evidence on record, the Appellate Court should not disturb the finding of acquittal recorded by the Trial Court, merely, because the Appellate Court could have arrived at a different conclusion than that of the Trial Court.

13. The burden of proof in a criminal trial never shifts and it is always the burden of the prosecution to prove its case beyond reasonable doubt on the basis of acceptable evidence. In fact, it is a settled principle of criminal jurisprudence that the more serious the offence, the stricter the degree of proof required, since a higher degree of assurance is required to convict the accused.

14. In the instant case, the accused persons have been tried under Section 306/498-A read with Section 34, IPC for abetment of suicide and cruelty. Section 306 incorporates the offence of abetment of suicide and the main ingredients of the offence is the suicidal death and abetment thereof. The suicide is an intentional killing of oneself. The relevant provisions, which are now required to be looked into, are reproduced herein below:-

12 (2024:HHC:5466-DB) Section 306 of Indian Penal Code reads as under:

"If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, thereby .

showing the commission of suicide must be pursuant to the abetment committed by any person. It is the case of the prosecution that the husband abetted the deceased wife to commit suicide.

15. Section 113A of the Indian Evidence Act, 1872 relates to presumption as to abetment of suicide by a married woman, which reads as follows:-

"113A. Presumption as to abetment of suicide by a married women.- When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her

husband or such relative of her husband had subjected her to cruelty, the court may presume, having regard to all the other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband.

Explanation- For the purposes of this section, "cruelty"

shall have the same meaning as in section 498A of the Indian Penal Code (45 of 1860).

16. Explanation to Section 498-A IPC defines cruelty caused on wife by husband or his relatives as follows:-

1[Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation.-For the purposes of this section, "cruelty means"--

(a) any willful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or 13 (2024:HHC:5466-DB) valuable security or is on account of failure by her or any person related to her to meet such demand.]"

17. To substantiate the charges framed against the .

respondents/accused persons and to bring home the guilt of the accused persons, the prosecution examined as many as 19 witnesses.

However, the case of the prosecution mainly rests upon the statements of PW-1 Smita Kumari (complainant), PW-2 Gian Chand, father of the deceased, PW-3 Gyatri Devi, PW-4 Shakuntla Devi, PW-5 Inder Singh and PW-6 Saroti Devi.

18. to As per statement of complainant PW-1 Smita Kumari, deceased Reena Kumari was her younger sister and they both were married to the sons of accused Sunder Singh on 26.4.2007. She was married to Shyam Singh (younger brother of accused Balbir) and her sister was married to accused Balbir. After 7 days of the marriage, accused Balbir Singh started giving beatings to her sister i.e. the deceased and the accused persons started demanding dowry, i.e. ornaments for themselves, household articles like TV, fridge etc. She also deposed that the accused persons maltreated and caused harassment to both the sisters, therefore, after sometime, both the sisters left their matrimonial house and started living with their parents, where they stayed for a period of seven months. She further deposed that thereafter accused Sunder Singh, her husband Shyam Singh

came to their village alongwith the Panchayat Members and a compromise was effected interse the parties on 24.08.2011. On the assurance 14 (2024:HHC:5466-DB) given by accused Sunder Singh, both the sisters returned back to their matrimonial home, however, after 6-7 days, the accused persons again .

started misbehaving and causing maltreatment and cruelty as earlier.

She also stated that on 26.01.2011, the accused persons gave beatings to her sister and on 11.03.2012, the accused persons again gave beatings to both of them, regarding which the matter was reported at Police Post Deotsidh, where the accused persons again entered into a written compromise. On 16.03.2012, the accused persons again gave beatings to her sister and she was confined in a room and thereafter her sister went missing from the home and later she was found lying dead in Jaral Nullah and then she reported the matter immediately at Police Post Deotsidh. However, when PW-2, i.e. father of the complainant and the deceased, appeared in the witness-box, he admitted in his cross examination that he was completely unaware about the root cause of the matrimonial discord of his daughters. Therefore, the allegations regarding dowry demands, as alleged by the complainant, stands demolished for want of corroboration by her father. No other reason has been assigned by the complainant in her statement except the dowry demands being the root cause of matrimonial discord. As per the complainant, the incident in the morning of 16.03.2012, which took place was proximate in time to the commission of suicide by the deceased as the complainant specifically deposed that on 16.03.2012, the accused persons illegally confined her sister in a room, where she 15 (2024:HHC:5466-DB) was beaten up mercilessly and was later let off after an hour with threats to her life. However, this fact is not corroborated in view of the .

inquest report as well as postmortem report dated 17.03.2012. The postmortem report Ext. PW10/B does not indicate any antemortem physical injuries upon the body of the deceased. PW-10 Dr. Harvinder Singh who conducted the postmortem has categorically deposed that there were no external signs of injuries. In cross-examination, he specifically stated that he did not find any marks of physical violence.

Hence, the allegation that the accused persons gave beatings to the deceased in the morning of 16.03.2012 has not been proved by the prosecution.

19. The prosecution has also relied upon compromise dated 24.08.2011 Ext.PW-3/A entered interse the parties in presence of the Members of Gram Panchayat, Samaila, Tehsil Barsar, District Hamirpur and Gram Panchayat Sunhani, Tehsil Jhandutta, District Bilaspur. In this respect, the prosecution has examined PW-3 Gayatri Devi, Pradhan Gram Panchayat, Sunhani, PW-4 Shakuntla Devi, Pradhan of Mahila Mandal, Sunhani, PW-5 Inder Singh, Pradhan of Gram Panchayat Samaila, Tehsil Badsar, District Hamirpur and PW-6 Saroti Devi,

20. PW-3 Gayatri Devi, the then Pradhan Gram Panchayat, Sunhani deposed that in the year 2011, deceased Reena Kumari and her sister Smita returned to their parental house alongwith their children because the accused persons were not properly behaving with them 16 (2024:HHC:5466-DB) and after 5-6 months of their stay, one day she received a message from Gian

Chand that the accused Sunder Singh alongwith his son .

Shyam Singh and Pradhan Inder Singh of Gram Panchayat Jaral were scheduled to visit his house for conciliation and she was also called to participate in the joint meeting. The matter was jointly deliberated and thereafter a written agreement was executed interse parties and as per the terms and conditions of the agreement Ext.PW3/A, both the girls returned to their matrimonial home. Later, she heard that the accused persons were not keeping the girls as per the terms and conditions of the agreement Ext.PW3/A. On 16.3.2011, she came to know that one of the daughters of Gian Chand i.e. Reena Kumari had put an end to her life by committing suicide.

21. PW-4 Shakuntla Devi, Pradhan of Mahila Mandal, Sunhani deposed that during the course of conciliation proceedings, an agreement was executed, as per which, both the daughters of Gian Chand returned to their in-laws' house. Later, she came to know from Gian Chand that both the parties were not residing amicably. She also came to know that on 12.3.2012, the accused persons had beaten deceased Reena Kumari and the aforesaid incident was reported to the police at P.P. Deotsidh. On 16.3.2012, she came to know that Reena Kumari had committed suicide.

22. From the close scrutiny of the statements of PW-3 Gayatri Devi and PW-4 Shakuntla Devi it has become clear that both of them 17 (2024:HHC:5466-DB) have not come out with any specific reasons regarding the root cause of the strained relations between the parties. From their statements, it .

cannot be presumed that the accused persons were causing maltreatment and harassment to the deceased in order to meet out their unlawful demands of dowry.

23. PW-5 Inder Singh, Pradhan of Gram Panchayat Samaila deposed that he received complaints from both the parties. Deceased Reena Kumari as well as her sister Smita used to make complaints against the act and conduct of accused persons, whereas, the accused persons made complaints qua act and conduct of their daughters-in-law.

The complaints were taken up and in the month of August,2011,a compromise was effected between the parties after associating the local panchayat of village Sunhani and in compliance to the compromise, the girls returned to their matrimonial home and thereafter he did not receive any complaint from the girls.

24. PW-6 Saroti Devi, deposed that in compliance to the compromise, Ex.PW-3/A,deceased Reena Kumari and her sister Smita returned to their matrimonial home. On 16.3.2012, she received information that Reena Kumari was lying dead in Nalla and she went to the spot and saw her dead body.

25. From the statements of PW-5 Inder Singh and PW-6 Saroti Devi also, it cannot be said that the accused persons were maltreating and harassing both the sisters on account of bringing insufficient dowry 18 (2024:HHC:5466-DB) or to meet their unlawful demands of dowry, therefore, all the allegations levelled by the complainant appear to be an afterthought.

26. So far as the suicide note Ext. PW17/D, allegedly written by the deceased is concerned, the facts mentioned in the same are completely out of context with respect to the allegations made by the complainant against the accused persons. Therefore, the suicide note also is of least significance to ascertain the actual reason which had prevailed upon the deceased to put an end to her life. Furthermore, perusal of the evidence on record reveals that on 01.09.2011, on the request of both the sisters, they got separated in mess and meal from the accused persons in presence of the local panchayat. PW-5 Inder Singh and PW-6 Saroti Devi have admitted during their cross-

examinations that as per the arrangement, the girls were given separate rooms alongwith kitchen and thereafter the accused persons set up chullah outside the courtyard as they were having only one kitchen in the house and the girls were also given a buffalo since they had small children. Thus, it has also duly been proved on record that the complainant and the deceased got separated from the accused persons by way of mutual agreement on 01.09.2011 in presence of the local panchayat. It has also come in evidence on record that after the compromise dated 01.09.2011, no specific incident was disclosed or reported either to the police or to the local panchayat by both the sisters. Therefore, the prosecution has failed to prove the allegations of 19 (2024:HHC:5466-DB) continuous maltreatment and harassment by the accused persons since the parties were living separately after 01.09.2011 and under these .

circumstances, it cannot be said that there was any occasion for the accused persons to resort to any physical violence.

27. In Ghulam Mustafa vs State of Uttarakhand, AIR 2015 SC 3101, the Hon'ble Supreme Court held that a casual remark or something said in a routine way or in usual conversation should not be construed or misunderstood to mean 'abetment.' A conviction on mere allegation of harassment without any positive action in proximity to the time of occurrence on the part of accused that led a person to commit suicide is not sustainable under section 306 IPC.

28. Again, in Gurucharan vs State of Punjab, AIR 2017 SC 74, it has been held that to constitute the offence under section 306 IPC, there should be a live link between abetment and suicide and the intention and involvement of the accused to aid or instigate the commission of suicide is imperative. So far as the grievance of dowry demand and consequential harassment is concerned, it should not be general in nature and there should be some specific incident and should have provocative capability to drive the deceased to such distressed state, mental and physical that she could elect to end her life.

29. In Nachhatter Singh vs State of Punjab, (2011) 11 SCC 542, the Court observed that in case of abetment of suicide by married woman, the cruelty and harassment meted out must be of nature to 20 (2024:HHC:5466-DB) drive a person of common prudence to commit suicide. Every quarrel between husband and wife which results in suicide cannot be taken to .

abetment by husband. For abetment, standard of reasonable or practical woman as compared to headstrong and over sensitive one is to be applied.

30. In Sohan Raj Sharma Vs. State of Haryana, AIR 2008 Supreme Court 2108, the Hon'ble Supreme Court held:-

"9. In State of West Bengal Vs. Orilal Jaiswal (AIR 1994 SC 1418) this Court has observed that the courts should be extremely careful in assessing the facts and circumstances of each case and the evidence adduced in the trial for the purpose of finding whether the cruelty meted out to the victim had in fact induced her to end her life by committing suicide.

If it transpires to the Court that a victim committing suicide was hypersensitive to ordinary petulance, discord and differences in domestic life quite common to the society to which the victim belonged and such petulance discord and differences were not expected to induce a similarly circumstanced individual in a given society to commit suicide, the conscience of the Court should not be satisfied for basing a finding that the accused charged of abetting the offence of suicide should be found guilty.

10. Section 107 IPC defines abetment of a thing. The offence of abetment is a separate and distinct offence provided in the Act as an offence. A person abets the doing of a thing when (1) he instigates any person to do that thing;

or (2) engages with one or more other persons in any conspiracy for the doing of that thing; or (3) intentionally aids, by act or illegal omission, the doing of that thing. These things are essential to complete abetment as a crime. The word "instigate" literally means to provide, incite, urge on or bring about by persuasion to do any thing. The abetment may be by instigation, conspiracy or intentional aid, as provided in the three clauses of Section 107. Section 109 provides that if the act abetted is committed in consequence of abetment and there is no provision for the punishment of such abetment, then the offender is to be punished with the punishment provided for the original offence. 'Abetted' in Section 109 means the specific offence abetted. Therefore, the offence for the abetment of which a person is charged with the abetment is normally linked with the proved offence.

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11. In cases of alleged abetment of suicide there must be proof of direct or indirect acts of incitement to the commission of suicide. The mere fact that the husband treated the deceased-wife with cruelty is not enough. [See Mahinder Singh Vs. State of M.P. (1955 AIR SCW 4570)]."

31. In Harjit Singh Vs. State of Punjab, AIR 2006 Supreme Court 680, it is held as under:-

"26. Before invoking the provisions of Section 306 IPC, it is necessary to establish that : (1) the deceased committed suicide, and (ii) she had been subjected to cruelty within the meaning of Section 498 A IPC.

27. Only in the event those facts are established, a presumption in terms of Section 113 A of the Indian Evidence Act could be raised. In the instant case, the prosecution has not been able to prove that the deceased was subjected to cruelty within the meaning of Section 498 A, IPC. No case that the deceased committed suicide was also made out."

32. The legal position has been reiterated by the Hon'ble Supreme Court in Mariano Anto Bruno and another Vs. Inspector of Police, AIR 2022 Supreme Court 4994, wherein it has been held as follows:-

" 25. The ingredients of Section 306 IPC have been extensively laid out in M. Arjunan Vs. State, represented by its Inspector of Police 7 which are as under:-

"The essential ingredients of the offence under Section 306 IPC are: (i) the abetment; (ii) the intention of the accused to aid or instigate or abet the deceased to commit suicide. The act of the accused, however, insulting the deceased by using abusive language will not, by itself, constitute the abetment of suicide. There should be evidence capable of suggesting that the accused intended by such act to instigate the deceased to commit suicide. Unless the ingredients of instigation/abetment to commit suicide are satisfied, accused cannot be convicted under Section 306 IPC."

26. In order to convict an accused under Section 306 IPC, the state of mind to commit a particular crime must be visible with regard to determining the culpability. With regard to the same, a 22 (2024:HHC:5466-DB) two-judge bench of this Court in Ude Singh & Ors. State of Haryana observed as under:-

"16. In cases of alleged abetment of suicide, there must be a proof of direct or indirect act/s of incitement to the .

commission of suicide. It could hardly be disputed that the question of cause of a suicide, particularly in the context of an offence of abetment of suicide, remains a vexed one, involving multifaceted and complex attributes of human behavior and responses/reactions. In the case of accusation for abetment of suicide, the Court would be looking for cogent and convincing proof of the act/s of incitement to the commission of suicide. In the case of suicide, mere allegation of harassment of the deceased by another person would not suffice unless there be such action on the part of the accused which compels the person to commit suicide; and such an offending action ought to be proximate to the time of occurrence. Whether a person has abetted

in the commission of suicide by another or not, could only be gathered from the facts and circumstances of each case.

16.1. For the purpose of finding out if a person has abetted commission of suicide by another; the consideration would be if the accused is guilty of the act of instigation of the act of suicide. As explained and reiterated by this Court in the decisions above-referred, instigation means to goad, urge forward, provoke, incite or encourage to do an act. If the persons who committed suicide had been hypersensitive and the action of accused is otherwise not ordinarily expected to induce a similarly circumstanced person to commit suicide, it may not be safe to hold the accused guilty of abetment of suicide. But, on the other hand, if the accused by his acts and by his continuous course of conduct creates a situation which leads the deceased perceiving no other option except to commit suicide, the case may fall within the four-corners of Section 306 IPC. If the accused plays an active role in tarnishing the self- esteem and self-respect of the victim, which eventually draws the victim to commit suicide, the accused may be held guilty of abetment of suicide. The question of mens rea on the part of the accused in such cases would be examined with reference to the actual acts and deeds of the accused and if the acts and deeds are only of such nature where the accused intended nothing more than harassment or snap show of anger, a particular case may fall short of the offence of abetment of suicide. However, if the accused kept on irritating or annoying the deceased by words or deeds until the deceased reacted or was provoked, a particular case may be that of abetment of suicide. Such being the matter of delicate analysis of

23 (2024:HHC:5466-DB) human behaviour, each case is required to be examined on its own facts, while taking note of all the surrounding factors having bearing on the actions and psyche of the accused and the deceased."

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33. In Hans Raj Vs. State of Haryana, (2004) 12 SCC 257, the Supreme Court held that the nature of presumption under Section 113A is discretionary in the sense that from the mere fact that the wife committed suicide within 07 years of marriage and that she had been subjected to cruelty by the husband, there will be no automatic presumption that the suicide had been abetted by the husband.

34. Thus, in view of the aforesaid authoritative pronouncements of Hon'ble Supreme Court, if the Court examines the allegations made in this case, there is no direct evidence of cruelty inflicted by the present accused persons against the deceased.. The facts suggest that there may have some strained relationship between the accused persons and the deceased, that does not mean that they inflicted physical and mental torture upon the victim which led her to commit suicide. There is no principle of law that wherever wife commits suicide, the husband and in laws would bear the responsibility and would be held liable. Where the deceased was living separately from the accused persons after 01.09.2011 persons by way of mutual agreement, which was arrived at between the parties in the presence of local panchayat and after that, no specific incident of maltreatment and

cruelty was disclosed or reported either to the police or to the local panchayat by the deceased, general allegation of harassment cannot 24 (2024:HHC:5466-DB) be sufficient to hold the accused persons guilty for the offence of abetment of suicide. The prosecution has failed to prove the allegations .

of continuous maltreatment and harassment by the accused persons and under these circumstances, it cannot be said that there was any occasion for the accused persons to resort to any physical violence.

The prosecution has failed to examine any independent witness to prove that any demand of dowry was made by the accused persons before them. There is no satisfactory material on record to prove cruelty and harassment with the deceased before the incident or abetment in proximity of time for committing suicide. To attract the offence under Section 306 IPC, the alleged cruelty, instigation or encouragement by accused should not only be proved by prosecution but also be of such nature which leaves no option to the deceased except to commit suicide. There is no evidence led by prosecution that there was abetment of such grave nature which was likely to drive the deceased to commit suicide. The suicidal death in this case cannot be due to any illegal act or illegal omission or instigation, by anybody else. It may be the deceased's own act, as she being of hyper sensitive nature, for which, the husband and in-laws cannot be held guilty.

35. We are of the considered opinion that the view taken by the trial Court while acquitting the accused is a reasonable view based on the evidence on the record and the same cannot be said to be perverse or contrary to the material on record.

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36. In view of what has been discussed hereinabove, no interference in the judgment of acquittal dated 20.03.2013, passed by .

the learned Additional Sessions Judge, Fast Track Court, Hamirpur, HP in Sessions Trial No.13 of 2012, is required as the same is the result of proper appreciation of evidence and law. The appeal, which is devoid of merits, deserves dismissal and is accordingly dismissed. Bail bonds are discharged.

Pending application(s), if any, shall also stand disposed of.

(Tarlok Singh Chauhan) Judge (Sushil Kukreja) Judge July 18, 2024 (VH)